CITY OF HAVERHILL
POLICE DEPARTMENT
OFFICE OF THE CHIEF, 40 BAILEY BLVD, HAVERHILL, MASSACHUSETTS 01830

ROBERT P. PISTONE, JR.
CHIEF OF POLICE

TEL. (978) 373-1212
FAX (978) 373-3981

August 25, 2025

VIA ELECTRONIC MAIL

Joshua Dankoff
Director of Strategic Initiatives
Citizens for Juvenile Justice

Dear Mr. Dankoff:

In response to your request, please see the below responses:

REQUEST

1. All departmental or municipal policies regarding communication and information sharing between departmental officers or employees and federal agents/agencies within the Federal Bureau of Investigation (FBI) or the U.S. Department of Homeland Security (DHS), including but not limited to the U.S. Immigration and Customs Enforcement (ICE). The records request includes, but is not limited to, policies regarding:
A. Fingerprint and other data sharing,
B. ICE detainer requests,
C. Compliance with federal immigration enforcement efforts, including guidance or policies around when communication with ICE officers is allowed, and
D. Communicating with federal immigration enforcement officers.
This request covers any policies that are currently in effect or that have been in effect at any point on or after January 20, 2025.

RESPONSE

Please see The Haverhill Police Department's Policy and Procedure No. 1.5.1. entitled the Department's Role and Impact on Enforcement of Federal Civil Immigration Law attached herewith.

REQUEST

The three most recent communications (e.g., emails, text messages, call logs or transcripts, or otherwise) between a departmental officer or employee and a federal DHS or ICE employee. In addition, I request all records related to these communications, including, but not limited to, any records indicating that the department was made aware of the communications, discussions of their content or implications, evaluations them for compliance with departmental or other city policies, identification or acknowledgement of any potential policy violations, and any internal responses, disciplinary actions, or follow-up measures resulting from these communications.

RESPONSE

Please see the attached email requests. Kindly note that pursuant to Exemptions A (CORI) and C (Privacy) of the Massachusetts Public Records Law, portions (i.e., names, dates of birth, telephone numbers, criminal offender record information, etc.) of the attached document have been withheld/redacted. In that the documents contain information of a highly personal nature, release of said information is exempt. Exemption A - Criminal Offender Record Information Act (CORI). M.G.L. c. 6, s. 167, 172; 803 C.M.R. 2.03(3). The CORI statute imposes restrictions on the dissemination of records which were compiled by the Department concerning an identifiable individual which relate to the nature or disposition of a criminal charge, an arrest, a pre-trial proceeding, other judicial proceedings, sentencing, incarceration, rehabilitation, or release. Therefore, these records are being withheld pursuant to Exemption A of the Public Records Law. This exemption allows for the withholding of record which are "specifically or by necessary implication exempted from disclosure by statute." M.G.L. c. 4, s. 7(26)(a). A governmental entity may use Exemption A as a basis for withholding requested materials where the language of the exempting statute suggests that the public's right to inspect records under the Public Records Law is restricted. Attorney General v. Collector of Lynn, 377 Mass. 151, 154 (1979); Ottaway Newspapers, Inc. v. Appeals Court, 372 Mass. 539, 545-46 (1977). M.G.L. c. 6, s. 167, the CORI statute prevents the Department from disclosing the requested police arrest records and reports. The Department of Criminal Justice Information Services (DCJIS) provides public access to certain criminal records. Exemption A of the Public Records Law covers those records which are "specifically or by necessary implication exempted from disclosure by statute, which may be withheld from disclosure." The following statutorily exempt and prohibited records that can be withheld from public inspection are, including but not limited to, victim and victim family information (c. 66, s. 10B); sex victim and rape report information (c. 265, s. 24c); domestic violence reports (c. 209A, s. 1); harassment order information (c. 258E, s. 10); immediate threat reports (c. 90, s. 22I); firearm information (c. 66, s. 10); child requiring assistance (CHINS) (c. 119); juvenile delinquency reports (c. 119, s. 60A); sex offender information (c. 6, s. 178I); search warrant and affidavits; registry of motor vehicle information; and criminal offender record information (CORI) (c. 6, s. 167). Exemption (C)

(G.L. c. 4, §7(26)(c)) protects from public disclosure several categories of information: "personnel and medical files or information and any other materials or data relating to a specifically named individual, the disclosure of which may constitute an unwarranted invasion of personal privacy; provided, however, that this subclause shall not apply to records related to a law enforcement misconduct investigation." Exemption (C) protects both personnel and medical information, as well as "intimate details of a highly personal nature." Aside from personnel and medical information, the courts have held that Exemption (C) is designed to protect from public disclosure a variety of personal information, including marital status, paternity, substance abuse, government assistance, family disputes *and reputation*. People for the Ethical Treatment of Animals (PETA) v. Dep't of Agric. Res., 477 Mass 280, 292 (2017) (emphasis added). In deciding whether there is a privacy interest in requested records and the weight to be accorded any such interest, "we have looked to three factors ... : (1) whether disclosure would result in personal embarrassment to an individual of normal sensibilities; (2) whether the materials sought contain intimate details of a highly personal nature; and (3) whether the same information is available from other sources" (footnote omitted). PETA, 477 Mass. at 292, *citing* Globe Newspaper Co. v. Police Comm'r of Boston, 419 Mass. 852, 858 ("Police Comm'r of Boston"). " '[O]ther case-specific relevant factors' may [also] influence the calculus." PETA, *supra*, *quoting* Police Comm'r of Boston, *supra*. Exemption C (Privacy) indicates that "personnel and medical files or information; also, any other materials or data relating to a specifically named individual, the disclosure of which may constitute an unwarranted invasion of personal privacy." Exemption C has three individual components: (1) Personal Privacy – is limited to "intimate details of a highly personal nature. 950 CMR 33.16 Invasion of Personal Privacy."; (2) Medical Information – "medical information will always be of a sufficiently personal nature to warrant exemption;" (3) Personnel Information – The Appeals Court of Massachusetts distinguished "personnel records" from "internal affairs" records or information to determine employment decisions are exempt. See also, Mack v. Bristol District Attorney, 494 Mass. 1 (2024).

REQUEST

All records relating to incidents, if any, from January 20, 2025, to the day this request is responded to, in which an individual was taken from the department's custody directly into ICE custody. For each incident, the records request includes, but is not limited to, booking and transfer records, communications with ICE or other federal agencies, internal documentation or discussion of the transfer, and internal notes, memos, or documentation referencing communication with DHS or ICE.

RESPONSE

Please be advised that the Haverhill Police Department is not in possession, custody or control of the documents requested. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the department at the time the request is

received. As a result, there is no obligation for a department to create a record for a requestor to honor a request. See, Mass. General Laws, c. 4, s. 7(26) (defining "public records" as materials which have been "made or received" by a public entity); see, also, 32 Op. Att'y Gen. 157, 165 (May 18, 1977) custodian is not obliged to create a record in response to a request for information); see, also A Guide to the Massachusetts Public Records Law, Secretary of the Commonwealth, Division of Public Records, p. 7 (January 2013) (hereinafter Public Records Guide). As a result, the Haverhill Police Department is unable to respond to your request.

You have the right to appeal this decision to the Secretary of State's Office listed below:

Secretary of the Commonwealth
Public Records Division
McCormack Building
One Ashburton Place – Room 1719
Boston, MA 02108

By law, the Supervisor is required to respond within ten (10) business days of the receipt of your appeal pursuant to 950 CMR 32.08(1)(d). The appeal must include your original request along with this response. You may also seek judicial review of an unfavorable response by commencing a civil action in the superior court pursuant to G.L. c. 66, §10A(c).

Very truly yours,

Aniela Ricci
Office Manager
Records Dept.

Encs.

THE DEPARTMENT'S ROLE AND IMPACT IN ENFORCEMENT OF FEDERAL CIVIL IMMIGRATION LAW

POLICY & PROCEDURE NO.	ISSUE
1.5.1	DATE: March 16, 2017
Approved by: Robert P. Pistone, Chief of Police	EFFECTIVE DATE: March 16, 2017
Date: March 26, 2025	REVISION DATE: March 26, 2025
☐ NEW ☒ AMENDS ☐ RESCINDS	

I. PURPOSE AND SCOPE

The Haverhill Police Department recognizes and values the diversity of the community it serves. Many of its residents have emigrated to this community from other countries and some may not be citizens or legal residents of the United States. The city and the Haverhill Police Department are committed to promoting safety and providing proactive community policing services to all who live, work or visit our community. In furtherance of the adherence to the department's community policing philosophy, all community members and general stakeholders should know that they are encouraged to seek and obtain police assistance and protection regardless of their specific immigration and/or documentation status without fear of status checks.

The Haverhill Police Department relies upon the cooperation of all people located in the city of Haverhill including citizens, legal residents as well as those without a specific documentation status, to achieve our important goals of protecting life and property, investigating and preventing crime as well as resolving recurring neighborhood issues. Assistance from the many various immigrant populations is especially important when an immigrant, whether documented or not, is the victim or witness to a serious crime including the intimate partner issue of domestic violence. It is absolutely essential that these victims do not feel apprehensive or intimidated in any way in coming forward with the requisite information and general firsthand knowledge to aid in investigating a particular crime and holding those responsible accountable to our criminal justice system. This type of essential mutual trust and spirit of cooperation is absolutely crucial in preventing and solving crime incidents, as well as maintaining public order, safety and security in the entire community.

We fully realize that federal civil immigration enforcement or perceived enforcement by the Haverhill Police Department could have a "chilling effect" in our local immigrant community

and could limit cooperation with police by members of the community at large. As stated, we depend on the cooperation of all of our residents and stakeholders including immigrants, legal and undocumented, in solving all sorts of crimes and in the maintenance of public order. Without assurances that they will not be subjected to an immigration investigation and possible deportation, many immigrants with critical information would not come forward, even when heinous crimes are committed against them and/or their families.[1] Because many families with undocumented family members also include legal immigrant members, this would drive a potential wedge between the Haverhill Police and large portions of the legal immigrant community as well.

We as duly sworn police officers are responsible for providing effective police services to everyone in the City of Haverhill in an equal, fair, and just manner. The Haverhill Police Department is concerned primarily for the safety and welfare of all individuals found within the territorial jurisdiction of the City of Haverhill. Thus, detection of criminal behavior is of primary interest and concern in dealing with any individual suspected of violating the law. Race, religion, gender, sexual orientation, age, occupation, immigration status or any other arbitrary characteristic pertaining to any specific individual have absolutely no bearing on any decision for a Haverhill Police Officer to effectuate a stop or detention of an individual or have any impact whatsoever on the decision to make a lawful arrest for a violation of a criminal law.

The specific immigration status (or lack thereof) of an individual or group of individuals in and of itself, is not and shall not be a matter of local police concern or subsequent enforcement action by the HPD unless there exists through reliable and credible information a potential threat to public safety and/or national security. It is incumbent upon all officers and employees of the Haverhill Police Department to make an unyielding personal commitment to equal enforcement of the law and equal service to the public regardless of immigration-documentation status. Confidence in this valued commitment will not only protect an individual's rights and freedoms from being adversely affected but shall also increase the public's confidence in the police department's effectiveness and efficiency in protecting and serving the members of the entire City of Haverhill community.

II. POLICY

The enforcement of the nation's federal civil immigration laws is the primary responsibility of the federal government. Accordingly, the Haverhill Police Department **shall not** undertake immigration-related investigations and shall not routinely inquire into the specific immigration status of any person(s) encountered during normal police operations. Exceptions may be made under Section III (C) below.

This prohibition does not preclude the Haverhill Police Department from cooperating and assisting with federal immigration officials from the DHS Immigration and Customs Enforcement (ICE) Agency when formally requested as part of an on-going criminal investigation, or from **notifying those federal officials in serious situations** where a potential **threat to public safety** or **national security** is perceived. (See §§ III (C), (D), (E), (F) below).

[1] **Note**: The U-Visa protection provides a specific avenue through which immigrant crime victims and witnesses who cooperate with law enforcement can obtain temporary lawful immigration status and protection against deportation. See policy **U-Visa Policy – 55.3.1.**

III. PROCEDURE

A. The Lunn Decision:

In Commonwealth v. Lunn, the Supreme Judicial Court (SJC) held that Massachusetts Law does not provide Law Enforcement with the authority to hold individuals based solely on a federal civil immigration detainer. An ICE detainer is not a judicial warrant; it is an administrative request from a federal agency. Holding an individual beyond their lawful release time based solely on an ICE detainer is considered an unlawful arrest under Massachusetts law.

B. Detentions:

1) An officer should not detain any individual, for any length of time, for a civil violation of federal immigration laws or a related civil warrant.

2) No individual that has been lawfully contacted or detained, who is otherwise ready to be released should continue to be detained only because questions about the individual's status are unresolved.

3) An officer who has a reasonable suspicion that an individual, who has been lawfully contacted or detained, has committed a criminal violation of federal immigration law may detain the person for so long as it is reasonable to contact federal immigration officials (ICE) to verify whether the suspected violation is in fact criminal. Officers may then cooperate with ICE to the same extent they would cooperate with any other federal investigation.

4) Officers may only detain or transfer custody on a judicial warrant or a valid federal criminal charge.

C. Inquiries into Immigration Status:

1) A person's right to file a police report; participate in any police-community activities (i.e., Community Action Team Meetings, Neighborhood Watch, National Night Out, etc); or otherwise benefit from general police services **shall not** be contingent upon the individual providing proof of citizenship or any type of documented immigration status. (MPAC Standard: **42.2.8(a)**)

2) Consequently, officers **shall not** question any person about his or her specific citizenship or immigration status **unless** that person is reasonably believed to be involved in one or more of the activities identified in **Subsection III (D)** below.

3) Officers shall not request passports, visas, resident alien cards (i.e., "green cards"), or travel documents in lieu of, or in addition to, driver's licenses and other standard forms of identification. Such documents shall only be requested when standard forms of

identification are unavailable or when the officer is proceeding under **Subsection III (D)** below.[2]

D. Notification to Federal Immigration Authorities:

In furtherance of the department's community policing philosophy and continued engagement and outreach efforts, Haverhill Police Officers shall not participate in any federal civil immigration related investigations of any immigrant or foreign national, **except** when the **immigrant or foreign national**:

1) Is **arrested** for any **felony or crime of violence** by HPD Personnel including but not limited to:

   - Murder,
   - Assault with intent to Murder,
   - Assault & Battery by means of a Dangerous Weapon,
   - Assault by means of a Dangerous Weapon,
   - Armed Burglary,
   - Rape, (or any Sex Offense)
   - Mayhem, or
   - Armed Robbery;

2) When the HPD acquires reliable information that the individual in Haverhill Police custody has been **convicted** in a court of competent jurisdiction of **any violent felony**;

3) is **arrested** by HPD Personnel for any **terrorism-related offense**, or is otherwise reasonably suspected of involvement in any terrorist and/or subversive activities;[3]

4) is arrested for any offense involving the entry or fraudulent assimilation or **trafficking of individuals** into the United States, or is reasonably suspected of participating in an organized venture to bring or fraudulently assimilate undocumented foreigners in this country; **OR**

5) is **suspected** based upon the legal standard of probable cause (basis of knowledge and veracity) of **participating in criminal street gang activity involving violence and/or distribution of illegal drugs/weapons.**

E. Immigration and Customs Enforcement (ICE) Investigations and/or Requests for Assistance:

---

[2] **Note:** An exception to the above could occur if an operator of a lawfully stopped motor vehicle presents what appears to be a valid Foreign Country's Driver's License in which the license is valid in this state for only one (1) year and requires the operator to produce proof to the investigating officer of the most recent admission date to the United States so as to effectively toll the one year time period. (e.g., Form I-94 or Passport with the entry stamp).

[3] **Note**: The FBI Joint Terrorism Task Force (JTTF) shall also be contacted forthwith.

1) The U.S. Bureau of Immigrations and Customs Enforcement has primary jurisdiction for enforcement of the provisions to Title 8, U.S. Code dealing with illegal entry into the United States by foreign nationals.

2) The 10th Amendment protects Massachusetts Law Enforcement from being forced to enforce federal immigration laws.

3) Haverhill Police Officers **shall not** directly participate in any such ICE tactical operation(s) solely for the ***civil enforcement of federal immigration laws*** as part of any Detention or Arrest Team unless:

   - it is in direct response to a request for immediate assistance on a temporary basis for ***"Officer Safety"*** purposes; or
   - for the assistance in the apprehension of any individual who is also wanted on a Massachusetts issued Warrant Management System Criminal Warrant (WMS) which remains in full force and effect at the time of the request.

4) Whenever ICE has occasion to be in the city of Haverhill, looking for a target the OIC shall send a notification email forthwith to the Chief, Deputy Chief and Patrol Commander.

   - In addition, the OIC shall ascertain from the notifying ICE Agent or Supervisory Agent who called the OIC - pursuant to national de-confliction protocol to alert the presence in the city at a specific address - the specific "***reason***" that they are looking to place the wanted individual into federal custody.
   - If it is for a Massachusetts Criminal Warrant or other State Warrant[4] for which we as duly sworn Haverhill Police Officers have the right of arrest then we may assist.
   - If it is for **civil reasons only** then we shall stand down and not respond and only assist if a situation rises where an officer's (Agent's) safety is at risk where there is an emergency call for assistance.
   - The ICE Agent shall be asked to call back the OIC with the results of the investigation (e.g., no service, one in custody, name, DOB, etc.) so that Dispatch can update the CAD entry.
   - For those individuals placed in custody by ICE Officials solely for civil enforcement reasons a courtesy booking **shall not be required**.

5) Any detention by a member of the Haverhill Police Department during the request for assistance by ICE should be based upon a reasonable belief that the detained individual is either involved in **criminal activity** other than a civil violation of federal immigration laws or **is wanted by the Commonwealth of Massachusetts on a WMS Active Warrant.**

6) Information sharing with ICE is allowed and must, at a minimum, comply with Public Records laws.

[4] See G.L. Chapter 276 Sections 10(a)(b) for authorization for arrests from Fugitives from Justice from other States.

F. Immigration Detainer Request – Notice of Action on Arrestee

Under the Federal Secure Communities Program, the fingerprints of all persons arrested by state and local law enforcement agencies, in which those agencies routinely submit these electronic biometric prints to the FBI (via the Massachusetts State Police server) for criminal justice database checks, are also automatically shared with the Department of Homeland Security (DHS-ICE). During that electronic submission Immigration and Customs Enforcement (ICE) personnel will check the local arrestees' (currently being held in a police lock-up by the local or State PD) personal biographical information against the active DHS-ICE immigration databases. If ICE determines that it has what was deemed to be an "actionable interest" in the local arrestee based on a hit (match) on that database with the submitted fingerprints, ICE will then determine what specific enforcement action, if any, to take based on their DHS Enforcement Priorities and available personnel resources in existence at the time of the hit.

If the local arrestee appears to have violated the federal immigration laws and the arrestee is deemed to fall within any of the applicable enforcement priorities listed previously listed ICE will decide whether to issue what is known as a Request for an Immigration Detainer form for the arrested individual currently held in local police custody. A Request for a Detainer form, which is sent via a fax after an initial phone call is made to the local police department's OIC, is an official request from DHS-ICE directed to the specific state or local law enforcement agency to hold the individual for a period not to exceed 48 hours so that ICE has the opportunity to arrange for the potential transfer of the individual into federal custody in situations when gaining immediate custody is either impracticable or impossible.

ICE Enforcement Priorities are wide ranging, including not just felony convictions and those matters listed in **Subsection III (D)** but:

- all convictions on the arrestee's BOP of "any crime" including misdemeanors,
- as well as those arrestees currently being charged with an offense without a conviction record,
- those alleged to have committed acts of fraud,
- abuses of any benefit program,
- subject of final orders of deportation
- or those who commit acts that constitute threats to national security or public safety in general.

Federal law provides that an individual cannot be held on a detainer for longer than 48 hours, excluding weekends and holidays. At the end of the 48-hour period, the detainer expires. Policy 4 Haverhill Police Department If the local arrestee appears to have violated the federal immigration laws (e.g., overstayed a visa, crossed the border without inspection) and the arrestee is deemed to fall within any of the enforcement priorities, ICE will now decide whether to issue the Request for a Detainer for the arrested individual.

- Whenever any Officer in Charge (OIC) of the Haverhill Police Department receives either an Immigration Detainer (Form I-247 – issued 12/12) in the form of a fax from DHS-ICE, the OIC shall immediately upon arrival at Headquarters inform the bailing Clerk or

Assistant Clerk Magistrate of the existence of the Federal ICE Detainer when they respond to Police Headquarters to make the decision of setting bail on those currently in custody.

➢ **It shall be the decision of the bailing Clerk of Court to decide whether to set a monetary bail, release on personal recognizance or order that the arrestee be held in police custody via the Immigration Detainer until court is next in session (Lunn Decision).**

➢ The OIC shall ensure that the arresting Officer adheres to the following procedure when an Immigration Detainer is received:

1) Make a copy of the detainer and attach it to the report in the court drawer
2) Attach the original detainer to the OIC's copy of the booking sheet
3) Add the proper charge to the arrest report, adding the proper language in the report narrative.

* *Note: Although the issuance of a Detainer by ICE is not a criminal charge add the code "ICE" in the charges section of the booking, which will populate the charge field to read: "48 Hour Immigration Detainer (8 CFR 287.7)" so that the Department can accurately track each Detainer that is received.

➢ If a decision is made to bail the arrestee DHS-ICE: ERO (Enforcement and Removal Operations) shall be notified by the OIC.

➢ The arrestee SHALL always be afforded a copy of the applicable ICE Immigration Detainer Form.

➢ A copy of the ICE Detainer Form shall be placed with the arrestee's booking sheet and sent to records. Policy 6 Haverhill Police Department

➢ Federal law provides that the individual cannot be held on a Detainer for longer than 48 hours, excluding weekends and holidays. At the end of the 48-hour period, the Detainer shall expire forthwith.

G. In-Service Training:

The sworn members of the Haverhill Police Department shall review and sign-off on the provisions of this policy and any existing changes to the Federal Government's Policy on Immigration Enforcement yearly.

Aniela Ricci

From: [redacted]@uscis.dhs.gov>
Sent: Tuesday, March 25, 2025 11:25 AM
To: Aniela Ricci
Subject: External Message records request

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

As part of an administrative investigation concerning immigration benefits, USCIS is requesting any records your department has relating to the following individual:

Name: [redacted]

We are hoping to obtain the arrest and booking reports for [redacted]

Thank you for your assistance in this matter.

Respectfully,

[redacted]

Aniela Ricci

From: [redacted]@uscis.dhs.gov>
Sent: Monday, March 24, 2025 11:59 AM
To: PublicRecordsRequest
Subject: External Message records request

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

As part of an administrative investigation concerning immigration benefits, USCIS is requesting any records your department has relating to the following individual:

Name: [redacted]

Your department arrested him on [redacted]

[redacted] We are hoping to obtain your records for these and any other incidents involving the individual.

Thank you for your assistance in this matter.

Respectfully,

[redacted]